

DEED OF TRUST

REAL ESTATE INVESTMENT TRUST (REIT) TEMPLATE FOR INDIA
(Drafted under Indian Trusts Act, 1882 & SEBI (REIT) Regulations, 2014)

EXECUTION INSTRUMENT NOTE: This document must be executed on a non-judicial stamp paper of appropriate value as per the state stamp laws where the trust is registered, and must be registered with the jurisdictional Sub-Registrar under the Registration Act, 1908.

THIS DEED OF TRUST is made and executed at [City, State, India] on this _____ day of _____, 20__ (hereinafter referred to as the '**Deed**'), BY AND BETWEEN:

1. THE SETTLOR / SPONSOR:

[Sponsor Corporate Entity Name], a company incorporated under the Companies Act, 2013, having its registered office at [Corporate Address, India] (hereinafter referred to as the '**Sponsor**' or '**Settlor**', which expression shall include its successors-in-interest and permitted assigns).

2. THE TRUSTEE:

[Trustee Public Financial Institution Name], a SEBI-registered Debenture/REIT Trustee, having its registered office at [Trustee Address, India] (hereinafter referred to as the '**Trustee**', which expression shall include its successors-in-office and permitted assigns).

WHEREAS:

A. The Settlor intends to establish an irrevocable trust for the purpose of carrying out the business of a Real Estate Investment Trust ('REIT') in accordance with the Securities and Exchange Board of India (Real Estate Investment Trusts) Regulations, 2014 (the '**SEBI REIT Regulations**').

B. The Settlor has contributed an initial corpus sum of INR 10,000/- (Rupees Ten Thousand Only) unto the Trustee to establish the Trust, and the Trustee has agreed to accept the obligations of the trust under these presents.

NOW THIS DEED WITNESSETH AND IT IS HEREBY MUTUALLY AGREED BY AND BETWEEN THE PARTIES AS FOLLOWS:

1. DEFINITIONS & INTERPRETATIONS

All capitalized terms used herein but not explicitly defined shall have the meanings attributed to them under the SEBI REIT Regulations, 2014, and the Indian Trusts Act, 1882.

2. CONSTITUTION AND NAME OF THE TRUST

The Settlor hereby settles and establishes an irrevocable trust named '**[Name of the REIT] Trust**' (the 'Trust') for the benefit of the Unitholders. The principal office of the Trust shall be situated at [Insert City/Office Address, India].

3. INDEPENDENCE OF THE TRUSTEE

The Trustee declares that it is independent of the Sponsor and the Manager in terms of the SEBI REIT Regulations. The Trustee shall hold the assets, properties, SPVs, and holdcos of the REIT in its name, in trust for the absolute benefit of the Unitholders collectively as beneficiaries.

4. APPOINTMENT OF THE MANAGER

The Trustee shall, upon instructions of the Sponsor, enter into an Investment Management Agreement with [Manager Company Name] (the '**Manager**'). The Manager shall manage the assets and investments of the REIT in accordance with Regulation 10 of the SEBI REIT Regulations.

5. INVESTMENT OBJECTIVES AND POLICIES

The primary objective of the Trust is to undertake the activity of a REIT by investing in completed, revenue-generating real estate assets or infrastructure projects in India, ensuring that at least 80% of the value of the REIT assets are invested in operational real estate assets, or as otherwise mandated by SEBI guidelines from time to time.

6. RIGHTS & EQUALITY OF UNITHOLDERS

The Unitholders shall have an undivided beneficial interest in the Trust properties. No Unitholder shall enjoy superior voting rights or any other rights over another unitholder, and the Trust shall not issue multiple classes of units, subject to subordinate units permitted specifically for sponsors under SEBI rules.

7. SEGREGATION & PROTECTION OF ASSETS

The Trustee shall ensure that the Trust assets are held separate, segregated, and independent from the personal assets of the Trustee, the Sponsor, the Manager, or any other third party. No personal creditors of the Trustee or Manager shall have any recourse to the Trust properties.

8. DISTRIBUTIONS (NET CASH FLOWS)

The Manager and Trustee shall ensure that not less than 90% of the net distributable cash flows of the REIT are distributed to the Unitholders at least once every six months, or in such frequencies as prescribed by SEBI guidelines.

9. AMENDMENTS TO THE DEED

No modification or amendment to this Trust Deed shall be executed without the prior written approval of SEBI and the approval of the Unitholders by a resolution passed with the requisite majority prescribed under the SEBI REIT Regulations.

IN WITNESS WHEREOF, the Parties hereto have signed and executed this Deed of Trust on the day and year first written above.

SIGNED AND DELIVERED
For and on behalf of the **Settlor / Sponsor**

Authorized Signatory
Name:
Designation:

SIGNED AND DELIVERED
For and on behalf of the **Trustee**

Authorized Signatory
Name:
Designation:

WITNESSES:

1. Signature: _____
Name:
Address:

2. Signature: _____
Name:
Address:

This is for informational purposes only. For medical advice or diagnosis, consult a professional. AI responses may include mistakes.